

CRD/FFAB60042

Ms. Shawnna Harbin
4640 S Calle Santa Cruz Unit 2311
Tucson, AZ 85714

Office of the Arizona Attorney General
Division of Civil Rights Section
Attn: Deliah Westbrook
2005 N. Central Avenue
Phoenix, AZ 85004



OFFICE OF THE ARIZONA ATTORNEY
GENERAL

KRIS MAYES
ATTORNEY GENERAL

CIVIL LITIGATION DIVISION
DIVISION OF CIVIL RIGHTS SECTION

LESLIE ROSS
CHIEF COUNSEL

December 30, 2025

Ms. Shawwna Harbin
4640 S Calle Santa Cruz Unit 2311
Tucson, AZ 85714

Re: Shawwna Harbin v. DFS Services LLC

Dear Ms. Shawwna Harbin,

Enclosed please find the Employment Charge of Discrimination that I have prepared based on the information that you have provided. *Please review the Charge and ensure everything is correct. Do not write on the Charge. If there is something that needs to be changed, please contact me to make the proper changes.*

YOU MUST SIGN THE CHARGE BEFORE A NOTARY PUBLIC and return the Charge to our office as soon as possible. If you do not have access to a Notary Public, please contact me to schedule a signing appointment, so that myself or another member of the Division can be made available to witness your signature.

Return the Charge by **April 24, 2025**. Once your signed/notarized charge is received it will be filed. In approximately 7-10 days you will receive a copy of the filed charge and additional information, to include the name and contact information of the assigned Compliance Officer.

PLEASE NOTE THAT THE STATUTE OF LIMITATIONS TO FILE THIS CHARGE RUNS May 24, 2025

Should you have any questions, please feel free to contact me at (602) 542-7739.

Sincerely,

Deliah Westbrook
Civil Rights Compliance Officer

Civil Rights Division
EMPLOYMENT QUESTIONNAIRE

General Information:

1. State your full name: Shawnna Harbin

2. State your current address and telephone number:

Street Address/Box No. 4640 S Calle Santa Cruz Unit 2311

City, State, Zip Code Tucson AZ 85714

Phone No.: 520-551-1113

Email Address: atlasmom421@gmail.com

3. The discrimination which you experienced is based on:
(Check appropriate base(s))

For complaints under the ACRA/Title VII:

- | | |
|---|-------|
| ☐ Race | _____ |
| ☐ Color | _____ |
| ☐ National Origin | _____ |
| ☐ Religion | _____ |
| ☐ Sex | _____ |
| ☐ Age | _____ |
| ☐ Disability | _____ |
| ☐ Retaliation | _____ |
| ☐ Genetic Test Results | _____ |

4. Please provide the following information needed for statistical purposes:

Your Race: Biracial, Black & White

Your Sex: Female

Your National Origin: _____

Your Date of Birth: _____

5. How did you hear about our office?

- | | |
|---|--|
| ☐ Attorney General website | ☐ Outreach Event |
| ☐ Referral from other organization | ☐ Other (please specify): _____ |

6. The reason(s) why you are filing a charge of discrimination is because of:
(Check appropriate reason)

- ☐ Failure to hire (includes barriers to interviews and applications)
☐ Failure to promote
☐ Termination (includes layoff, discharge, quit, resignation, etc.)
☐ Unequal terms and conditions of employment (includes unequal treatment in pay, discipline, benefits, work schedules, unlawful harassment, etc.)
☐ Sexual harassment
☐ Unlawful retaliation for filing a charge with the Civil Rights Division
☐ Unlawful retaliation for opposing a practice made unlawful by the Arizona Civil Rights Act
☐ Unlawful retaliation for filing a charge with any other government agency.
☐ Immigration related unfair employment practices (OSC)
(includes failure to hire or termination because of national origin [for employers with 4-14 employees], citizenship status [work authorized only], and document abuse [asking for additional or different I-9 documents]).
☐ Other Explain:
-

7. When did the discrimination act(s) take place?

First Time: (Date) 05/15/25

Last Time: (Date) 11/20/25

Continuous? ☐ Yes ☐ No

8. How many employees does this employer have? (check one)

☐ A. 15-100 ☐ B. 101-200 ☐ C. 201-500 ☐ D. 501+ ☐ U. Unknown

9. Furnish the employer's name (company name) and complete address and telephone number.

Company Name: DFS Services LLC

Address: c/o Corporation Service Company 7955 S. Priest Drive, Suite 102

City: Tempe State: AZ Zip Code: 85284

County: Maricopa Phone:

10. Furnish the name and address of the parent company (corporate office) and telephone number.

Company Name: _____

Address: _____

City: _____ State: _____ Zip Code: _____

County: _____ Phone: _____

11. Please provide the name and address of a contact person (friend or relative) through whom we can contact you if we were unable to reach you.

Name: _____

Address: _____

City: _____ State: _____ Zip Code: _____

County: _____ Phone: _____

12. Do you have an attorney who is representing you at this time? If so, please furnish his/her name, the name of the law firm and complete address below.

13. Have you filed a charge with the Equal Employment Opportunity Commission (EEOC), the Office of Special Counsel for Immigration-Related Unfair Employment Practices (OSC), or any other governmental agency concerning the allegations which you are raising in your charge of discrimination with this Division?

☐ Yes ☐ No

Agency Name: _____

On (Date) _____

14. Please explain the type of business the employer is engaged in (i.e., insurance, banking, manufacturing, retail trade, wholesale trade, service industry, etc.) and explain what kind of product is involved.

15. Does the potential Complainant have a handicap (disability) which will require a reasonable accommodation by this office?

☐ Yes ☐ No ☐ Unknown

The disability is :

Reasonable Accommodation Needed: (e.g., sign language interpreter, use of TDD instead of phone, etc.)

(For Intake Officer) Attach appropriate parts, fully completed, depending upon the harm alleged in the charge. Indicate by a check mark which of these parts are attached:

- | | |
|-----------------------------------|--|
| ☐ Part I | Failure to Hire |
| ☐ Part II | Failure to Promote |
| ☐ Part III | Termination |
| ☐ Part IV | Unequal Terms & Conditions of Employment |
| ☐ Part V | Retaliation |
| ☐ Part VI | Handicap Discrimination |
| ☐ Part VII | Sexual Harassment |
| ☐ Part III | Office of Special Counsel Intake Form |

EMPLOYMENT CHARGE OF DISCRIMINATION , Page 1 of 1 This form is affected by the Privacy Act of 1974; See Privacy Act Statement before completing this form.		AGENCY ☒ FEPA ☐ EEOC	CHARGE NUMBER
ARIZONA ATTORNEY GENERAL'S OFFICE, CIVIL RIGHTS DIVISION AND EEOC <i>State or Local Agency, if any</i>			
NAME <i>(Indicate Mr., Ms., Mrs.)</i> Ms. Shawнна Harbin		TELEPHONE NUMBER <i>(Include Area Code)</i> 520-551-1113	
STREET ADDRESS 4640 S Calle Santa Cruz Unit 2311		CITY, STATE AND ZIP CODE Tucson, AZ 85714	DATE OF BIRTH
NAMED IS THE EMPLOYER, LABOR ORGANIZATION, EMPLOYMENT AGENCY, APPRENTICE SHIP COMMITTEE, STATE OR LOCAL GOVERNMENT AGENCY WHO DISCRIMINATED AGAINST ME. <i>(If more than one, list below.)</i>			
NAME DFS Services LLC		NUMBER OF EMPLOYEES/MEMBERS Cat. D 501 or more	TELEPHONE NUMBER <i>(Include Area Code)</i>
STREET ADDRESS c/o Corporation Service Company 7955 S. Priest Drive, Suite 102		CITY, STATE AND ZIP CODE Tempe, AZ 85284	COUNTY Maricopa
CAUSE OF DISCRIMINATION BASED ON <i>(Check appropriate box(es))</i> ☒ RACE ☐ COLOR ☐ SEX ☐ RELIGION ☐ NATIONAL ORIGIN ☐ AGE ☒ RETALIATION ☐ DISABILITY ☐ GENETIC TEST RESULTS ☐ OTHER <i>(Specify)</i>			DATE DISCRIMINATION TOOK PLACE EARLIEST <i>(ADEA/EPA)</i> LATEST <i>(ALL)</i> 05/15/25 11/20/25 ☐ Continuing Action
EXPLAIN THE PARTICULARS OF WHAT TOOK PLACE <i>(If additional space is needed, attach extra sheet(s))</i> I. PERSONAL HARM: I was subjected to a hostile work environment and treated different due to my race, biracial (Black & White) and in retaliation for opposing a practice made unlawful. II. RESPONDENTS REASON FOR ADVERSE ACTION: None. III. DISCRIMINATION STATEMENT: I believe Respondent discriminated against me because of my race, biracial (Black & White), and retaliated against me, in violation of the Arizona Civil Rights Act, as amended, and Title VII of the Civil Rights Act of 1964, as amended because I filed a charge of discrimination with the U.S. Equal Employment Opportunity Commission (Charge No. 532-2024-02947). The particulars are: A. On or about April 3, 2023, I began my employment with Respondent as a Unit Manager. My work performance has always been satisfactory. B. On or about May 6, 2024, I filed a charge of discrimination with the U.S. Equal Employment Opportunity Commission (EEOC), 532-2024-02947. C. On or about May 15, 2025, the EEOC investigation was closed. D. In May 2025, after requesting to return to my original mid-shift schedule, I was placed on a waitlist while lower-level employees moved freely, and My manager, Rosanna removed mid-shift options from my department and even deleted my name from documents I created. Despite performing at twice the previous year's level, I received a rating of 3 in June, disqualifying me from promotion, and was told I remained on a waitlist even after the VP, Andy Francis ("Francis") removed me from it. I had to homeschool my son due to my schedule, and my concerns about compliance issues were dismissed. During this time, my department manager, Allan Glover ("Glover") made an inappropriate racial comment about the hardship fund, and after I sought clarification, he became hostile toward me in meetings. E. On or about July 14, 2025, I asked Respondent about my position on the waitlist. Respondent sent me a			
I WANT THIS CHARGE FILED WITH BOTH THE EEOC AND THE STATE OR LOCAL AGENCY, IF ANY. I WILL ADVISE THE AGENCIES IF I CHANGE MY ADDRESS OR TELEPHONE NUMBER AND I WILL COOPERATE FULLY WITH THEM IN THE PROCESSING OF MY CHARGE IN ACCORDANCE WITH THEIR PROCEDURES. I SWEAR OR AFFIRM THAT I HAVE READ THE ABOVE CHARGE AND THAT IT IS TRUE TO THE BEST OF MY KNOWLEDGE, INFORMATION, AND BELIEF.		SIGNATURE OF CHARGING PARTY AND DATE: SUBSCRIBED AND SWORN TO BEFORE ME THIS DATE <i>(Month, Day, Year)</i>	

EMPLOYMENT CHARGE OF DISCRIMINATION, Page 2 of 2

CHARGE NUMBER

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ARIZONA ATTORNEY GENERAL'S OFFICE, CIVIL RIGHTS DIVISION AND EEOC

CASE NAME: SHAWNNA HARBIN V. DFS SERVICES LLC

screenshot edited to make it look like I was at the top, which was false.

- F. On or about July 17, 2025, Respondent added me to the waitlist and falsely claimed I requested it that day. My seniority was manipulated, making it impossible to get the shift.
- G. On or about August 4, 2025, I had an hour-long Teams meeting with Glover, about my career path. He admitted there was a "blockade" by leadership preventing my advancement and said there was nothing I could do. When I asked if I should escalate to HR, he said, "Up to you."
- H. On or about August 25, 2025, I spoke with Glover again, explaining my childcare needs and asking what I was doing wrong. He confirmed there was a blockage and I couldn't get past it. He mentioned leadership visited an HBCU to recruit but admitted they never intended to hire anyone, they just wanted to "go to an HBCU."
- I. On or about September 19, 2025, I emailed Ethical Concerns outlining the full history and stating I believed the issues were in retaliation.
- J. On or about October 3, 2025, I went on FMLA intermittent leave, but they processed it as short-term disability, blocking my system access and preventing payment. They failed to send FMLA paperwork, causing me to miss the 15-day certification window.
- K. In or around October 2025, after I told Respondent I contacted the Attorney General's office, they began deleting Teams chats. I took screenshots showing selective deletion, which appeared to be an attempt to destroy evidence. I found a file proving inconsistencies and showed it to the investigator. They couldn't answer my questions and falsely claimed no one had moved shifts, which was untrue.
- L. When I returned from FMLA intermittent leave, I discovered my system was being recorded without notice which is something not done at my level. After I complained, they turned on recorders for other team leaders to cover up the targeting.
- M. In or around November 2025, my landlord threatened eviction because I wasn't paid. I applied for the hardship fund, which normally requires no proof, but they demanded doctor's notes and police reports. I'm aware another employee received funds in 2 days; mine took 3 weeks, and I was evicted.
- N. On or about November 20, 2025, due to the hostile work environment, I began short-term disability leave. I'm scheduled to return on December 20, 2025.
- O. I have applied for over 15 internal roles and been denied. My schedule remains fixed at 1:30 PM–10:00 PM while others freely change shifts. I believe this is retaliation for filing complaints.
- P. I believe and therefore allege that Respondent discriminated against me because of my race, biracial (Black & White) and for opposing a practice made unlawful.

I WANT THIS CHARGE FILED WITH BOTH THE EEOC AND THE STATE OR LOCAL AGENCY, IF ANY. I WILL ADVISE THE AGENCIES IF I CHANGE MY ADDRESS OR TELEPHONE NUMBER AND I WILL COOPERATE FULLY WITH THEM IN THE PROCESSING OF MY CHARGE IN ACCORDANCE WITH THEIR PROCEDURES.

I SWEAR OR AFFIRM THAT I HAVE READ THE ABOVE CHARGE AND THAT IT IS TRUE TO THE BEST OF MY KNOWLEDGE, INFORMATION, AND BELIEF.

SIGNATURE OF CHARGING PARTY AND DATE:

SUBSCRIBED AND SWORN TO BEFORE ME THIS DATE *(Month, Day, Year)*